Sofia Marchetti
Printed: 11/11/2025 08:44

From: Sofia Marchetti <s.marchetti@calderwynne.example>
Sent: Tuesday, 11 November 2025 08:41
To: Lena Brandt <l.brandt@calderwynne.example>
Subject: FW: Unit 4 Merrow Arcade - Interim Schedule of Dilapidations rev 1 / reinstatement

Lena - for the file please (ASH.0007), and print a copy for Alice. Diarise 24/12/25 - last day for CHPH to serve a reinstatement notice under the Licence if the break works. Also see Karen's email right at the bottom from August - useful.
S

-----Original Message-----
From: Simon Kerslake <s.kerslake@brannockmoss.example>
Sent: Monday, 10 November 2025 17:05
To: Rupert Ashcombe <r.ashcombe@hartwellvane.example>
Cc: Karen Pilcher <k.pilcher@quarringtonlake.example>; Sofia Marchetti <s.marchetti@calderwynne.example>
Subject: RE: Unit 4 Merrow Arcade - Interim Schedule of Dilapidations rev 1

Rupert

Thanks for your comments. Two of your points are fair - the clause ref on items 14-16 should be the reinstatement provision in the licence not 5.3, and the sub total has dropped item 12 (the AC servicing) out of the sum. Both will be corrected in rev 2 which I'll issue after the re-inspection. I'd rather do that once we have access to the roof for the condensers anyway.

On the rest I dont agree. The costings are budget figures at Q4 2025 rates from our cost database and are not "inflated" - happy to go through them line by line. I'd also flag item 9 (mezz balustrade fixings) as a safety point which your client should deal with now regardless of the break - two of the fixings are visibly loose and there are staff using that stair daily.

Re-inspection - I can do any of 18, 19 or 20 Nov. Let me know.

Regards
Simon

Simon Kerslake BSc MRICS
Associate Director
Brannock Moss Building Consultancy
Unit 7 Harbourside Yard, Bristol BS1 5TP
T 01632 960771

-----Original Message-----
From: Karen Pilcher <k.pilcher@quarringtonlake.example>
Sent: Friday, 7 November 2025 12:18
To: Rupert Ashcombe <r.ashcombe@hartwellvane.example>
Cc: Simon Kerslake <s.kerslake@brannockmoss.example>; Sofia Marchetti <s.marchetti@calderwynne.example>; Martin Doyle <m.doyle@carrowhill.example>
Subject: RE: Unit 4 Merrow Arcade - Interim Schedule of Dilapidations rev 1

Rupert

I'm not going to get into the legal arguments, which are for the lawyers. Our client's position on the break is as set out in Pellow Grange's letter of 17 October - the lease continues and runs to June 2031, so there is no question of the schedule being "premature". It is an interim schedule and was served as such.

For the record the service charge balancing charge of £7,432.18 and the insurance rent invoice are both still outstanding and I've had nothing from Daniel since his email in July. Happy to arrange for him to come in and inspect the atrium invoices, but that doesn't stop the clock on payment.

On reinstatement, I am taking instructions from CHPH on whether to serve a notice under the licence on a protective basis before Christmas. I'd expect our client to want the mezzanine out in any event - the unit

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is easier to relet without it - but the new shopfront is a different matter and Martin may well want to keep it.

The interim claim of c.£101.5k plus VAT stands for now subject to rev 2.

Kind regards

Karen Pilcher
Senior Property Manager
Quarrington Lake Property Management
2nd Floor, 41 Cheyne Parade, Bath BA1 1HS
T 01632 960587

-----Original Message-----
From: Rupert Ashcombe <r.ashcombe@hartwellvane.example>
Sent: Thursday, 6 November 2025 16:40
To: Simon Kerslake <s.kerslake@brannockmoss.example>
Cc: Karen Pilcher <k.pilcher@quarringtonlake.example>; Sofia Marchetti <s.marchetti@calderwynne.example>
Subject: RE: Unit 4 Merrow Arcade - Interim Schedule of Dilapidations rev 1
Attachments: U4 Merrow Arcade - Interim Sched rev 1 - HV comments 06.11.25.pdf

Simon

Thank you for the interim schedule. I attach it with our preliminary comments in the right hand column. Headline points:

1. Our client's position is that the lease ends on the break date, 24 June 2026, under the notice served on 28 August. Sofia is dealing with Pellow Grange on that and I won't repeat it here. On that footing the schedule is in any event premature - your client's remedy is a terminal schedule after the end of the term.

2. Items 14, 15 and 16 (removal of the mezzanine, the shopfront and the mezz services) are not dilapidations at all. They are reinstatement items and the obligation to reinstate the 2022 works only arises if the landlord serves notice under clause 6.1 of the licence for alterations dated 7 March 2022 not less than six months before the end of the term. No such notice has been served. If the break is effective that means by 24 December 2025. Your schedule cites "Licence cl. 5.3" for these items - clause 5.3 is the covenant to make good damage caused by the works, which is something different.

3. Item 15 in particular - reinstating the original timber shopfront would put back a worn out 2016 shopfront that was in poor condition when it came out. We do not accept that any landlord acting reasonably would require it, and the costing is speculative.

4. Arithmetic - your sub-total of £82,400.00 does not agree with the items. I make items 1-17 £85,350.00; it looks as though item 12 (£2,950.00) has dropped out of the sum. Not that the higher figure helps your client but rev 2 should be right.

5. The prelims at 10% and fees at 12% are both on the high side for works of this scale and we'll want to see the basis.

6. We'd like to re-inspect jointly with you, ideally with access to the roof for the AC condensers (item 12). Store manager is Bethan Lloyd - she can do any weekday morning.

Regards

Rupert Ashcombe BSc MRICS
Director
Hartwell Vane Surveyors
15 Lantern Yard, Reading RG1 3BW
T 01632 960446

-----Original Message-----
From: Simon Kerslake <s.kerslake@brannockmoss.example>
Sent: Tuesday, 4 November 2025 10:02

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To: Karen Pilcher <k.pilcher@quarringtonlake.example>; Rupert Ashcombe <r.ashcombe@hartwellvane.example>
Cc: Sofia Marchetti <s.marchetti@calderwynne.example>
Subject: Unit 4 Merrow Arcade - Interim Schedule of Dilapidations rev 1
Attachments: U4 Merrow Arcade - Interim Sched rev 1 03.11.25.pdf

Karen, Rupert

Please find attached our Interim Schedule of Dilapidations (revision 1) dated 3 November 2025, prepared following our inspection on 21 October. The schedule is served on behalf of Carrow Hill Property Holdings Ltd without prejudice to their position that the lease has not been determined.

The schedule includes the reinstatement of the 2022 alterations (items 14-16) as our client will be looking for the unit to be returned in its original configuration.

Costings are budget estimates excl VAT. Tenants comments column is left for Rupert to complete.

Regards
Simon

-----Original Message-----
From: Karen Pilcher <k.pilcher@quarringtonlake.example>
Sent: Thursday, 25 September 2025 14:55
To: Rupert Ashcombe <r.ashcombe@hartwellvane.example>
Cc: Sofia Marchetti <s.marchetti@calderwynne.example>
Subject: RE: FW: Unit 4 Merrow Arcade - Tenant's break notice

Hi Rupert

Thanks for your email. Our client has instructed Brannock Moss (Simon Kerslake) to prepare an interim schedule and I'd expect him to inspect in the second half of Oct - I'll get dates over. Access via the store manager is fine.

I don't have instructions on the reinstatement question yet, I'll come back to you.

Kind regards
Karen

-----Original Message-----
From: Rupert Ashcombe <r.ashcombe@hartwellvane.example>
Sent: Monday, 22 September 2025 11:30
To: Karen Pilcher <k.pilcher@quarringtonlake.example>
Cc: Sofia Marchetti <s.marchetti@calderwynne.example>
Subject: RE: FW: Unit 4 Merrow Arcade - Tenant's break notice

Dear Karen

I have been instructed by Ashdown & Pryce in connection with their exit from Unit 4 at the June 2026 break, and Sofia has kindly passed me the thread below.

Could you let me know (1) whether your client will require reinstatement of the shopfront and/or the mezzanine installed under the 2022 licence, and (2) whether your client intends to prepare an interim schedule of dilapidations before the break date. Our client would like to plan its strip out and budget early, and we'd be happy to meet on site.

Kind regards
Rupert

-----Original Message-----
From: Karen Pilcher <k.pilcher@quarringtonlake.example>
Sent: Friday, 29 August 2025 09:07
To: Sofia Marchetti <s.marchetti@calderwynne.example>
Subject: RE: Unit 4 Merrow Arcade - Tenant's break notice

Dear Sofia

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Thank you for your email and the attached copy notice, which I have forwarded to Martin Doyle at CHPH this morning.

Kind regards
Karen

-----Original Message-----
From: Sofia Marchetti <s.marchetti@calderwynne.example>
Sent: Thursday, 28 August 2025 16:12
To: Karen Pilcher <k.pilcher@quarringtonlake.example>
Subject: Unit 4 Merrow Arcade - Tenant's break notice
Attachments: ASH.0007 - Break notice and covering letter 28.08.25.pdf

Dear Karen

Please find attached, by way of information, a copy of our client's break notice in respect of Unit 4, Merrow Arcade, together with our covering letter, which have today been sent to your client by recorded delivery.

Kind regards
Sofia

Sofia Marchetti
Associate, Calder & Wynne LLP
40 Aldgate Wharf, London EC3N 4QT
T 020 7946 0384

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